Wounded Warrior Leave

Consistent with the requirements of the Wounded Warriors Federal Leave Act of 2015, the Postal Service allows veteran employees who meet the eligibility requirements to take Wounded Warrior Leave. This is a specific type of leave, which provides veteran employees with no loss in pay, for undergoing medical treatment for a service-related disability rated at 30% or more.

DEFINITIONS

Wounded Warrior Leave is an authorized absence from the Postal Service to undergo medical treatment for a service-connected disability rated at 30 % or more. It is a separate leave category, distinct from Sick Leave.

Treatment is an in-person visit to a health care provider, as specified in Section 513.364 of the Employees Labor Relations Manual (ELM), and includes the course of action prescribed by a health care provider. Treatment includes but is not limited to examination for and evaluations of the health condition that caused the disability rating.

Health Care Provider is the employee's attending physician or other attending practitioner as recognized by ELM 515.2

Twelve-Month Eligibility Period is defined as the continuous 12-month period that begins on the first day of employment during which an eligible veteran can use Wounded Warrior Leave. For employees on the rolls and non-career employees on a required break in service (five days a appropriate) on November 4, 2016, the 12-month period begins November 5, 2016. Click here to view the Nov. 22, 2016 letter regarding eligibility.

UPDATED ELIGIBILITY – WOUNDED WARRIOR LEAVE PROVIDED ON AN ON-GOING BASIS

• Eligible new hires will receive 104 hours of WWL upon hire (as required by law) to be used for the remainder of the current calendar year.

• Each January, all disabled veterans with a 30% or more combined disability rating will receive 104 hours of WWL to use during the calendar year.

• At the end of each calendar year, any remaining WWL will be forfeited but, assuming the employee still has a combined disability rating of 30% or more, he/she will receive a new 104 hours at the start of the new leave year.

• Any unused WWL is not rolled over to the next year, nor will it be paid out if the employee leaves.

• WWL can run concurrent with FMLA, when appropriate.

For the 2019 leave year the effective date is January 5, 2019.

Eligibility can be verified on the employee's PS Form 50 which is found in their e-OPF. In box #11 on their PS Form 50 it should indicate – "6-10pt-Comp over 30%". If box #11 does not denote "6-10pt-Comp over 30%", the employee will need to submit the necessary documentation to certify they meet the 30% eligibility. In the letter dated November 2016 it states – employees who have not yet submitted the necessary paper work must provide documentation from the Dept. of Veterans Affairs certifying that they have a qualifying service-connected disability. Specifically, a copy of DD 214, for each period of service, along with rating letter from the VA. Address:

HR Shared Service Center
Via mail: Attention RTR
HR Shared Service Center
PO Box 970100
Greensboro, NC 27497-0100
Fax: 651-994-3521

REQUESTS FOR WOUNDED WARRIOR LEAVE

Approval

All requests for Wounded Warrior Leave must be first submitted on a PS Form 3971. This request should be submitted in advance when foreseeable to the appropriate supervisor. There is an exception to the advance approval requirement for unexpected treatment. The supervisor is responsible for the approving requests for Wounded Warrior Leave by signing the PS Form 3971, and returning a copy to the veteran. Click here to view the Management Instruction on Wounded Warrior Leave.

Verification

The veteran is required to submit a PS Form 5980, Treatment Verification for Wounded Warrior Leave, certified by a health care provider that the veteran used the leave to receive treatment for a covere4d disability. The PS Form 5980 must be provided no later than 15 calendar days after the employee returns to work.

In a letter dated October 24, 2016 the Postal Service stated that a veteran employee's legitimate use of Wounded Warrior Leave will not be used for purposes of adverse personnel actions. (

Any further questions or concerns contact Assistant Director, Clerk Division Lynn Pallas-Barber (lpallas@apwu.org) and Assistant Maintenance Director Jimmie Waldon (Jwaldon@apwu.org)

Resources

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